

(Name of court)

at

Court office address

Form 26D: Affidavit

dated

for Filing Family Arbitration
Award for Support with Court

Recipient(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Payor

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

My name is (full legal name)

I live in (municipality & province)

and I swear/affirm that the following is true:

1. I attach a copy of an arbitration award.

The award contains provisions for ☐ child support and/or
☐ spousal support

for filing with the court so that its support provisions can be enforced or changed as if they were a court order.

The family arbitration award was made on (date)

2. I attach a copy of a family arbitration agreement (attach certificates of independent legal advice for both parties)

between myself and the Respondent that I signed on (date) appointing (name)
to arbitrate.

3. The family arbitration agreement has not been set aside or changed in any way.

4. The following requirements for enforceability as set out in section 59.6 of the *Family Law Act*, have been met:

- The agreement under which the award is made in writing and complies with the regulations under the *Arbitration Act, 1991*;
- Each party to the agreement received independent legal advice before the agreement was made;
- The requirements of section 38 of the *Arbitration Act, 1991* were met; and
- The arbitrator complied with the regulations made under the *Arbitration Act, 1991*.

Form 26D: Affidavit for Filing Family Arbitration Award (page 2)
for Support with Court

Court File Number

5. The arbitration award includes the following provisions relating to child support:

a) (name of party) to pay (name of party)
child support in the monthly amount of \$ for the following children: (names and birthdates of children)

☐ This amount includes the following special expenses:

Type	Amount
	\$
	\$
	\$
	\$

b) Child support is based on the payor's gross annual income of \$ The proportionate share of
special expenses is based on the recipient's gross annual income of \$

6. The arbitration award includes the following provisions relating to spousal support:

(name of party) to pay (name of
party)
spousal support in the monthly amount of \$ payable until the termination date of
..... (if applicable).

7. The arbitration award has not been appealed or set aside by a court nor has it been changed since it was issued.

Sworn/Affirmed before me at
.....
municipality
in
.....
province, state, or country
on
date
.....
Commissioner for taking affidavits
(Type or print name below if signature is illegible.)

Signature
(This form is to be signed in front of a
lawyer, justice of the peace, notary public
or commissioner for taking affidavits.)